

26NWCV01142 26NWCV01142

County: los-angeles

Division: Civil Law and Motion

Department: C

Hearing date: 2026-08-12

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=SE%20%2CC%2C08%2F12%2F2026

Source SHA-256: 226d690c4c4a30625776bd18a024f2b4cb91cf4c9a2af0ddc3294ca54c169f7b

Case Number: 26NWCV01142 Hearing Date: August 12, 2026 Dept: C

ORANGE COUNTY

CUSTOM VINYL GRAPHICS & SIGNS, INC. v. RH LAS INC.

CASE NO.: 26NWCV01142

HEARING: 8/12/26 @

9:30 AM

#10

TENTATIVE ORDER

Defendant RH LAS, Inc.'s demurrer to Plaintiff Orange County

Custom Vinyl Graphics & Signs, Inc.'s first amended complaint is OVERRULED.

Moving party(s) to give notice.

Background

On March 30, 2026, Plaintiff Orange County Custom Vinyl Graphics & Signs, Inc. ("Plaintiff") filed a complaint against Defendant RH LAS, Inc. ("Defendant"). On May 20, 2026, Plaintiff filed the operative first amended complaint ("FAC") alleging causes of action for common counts.

Plaintiff alleges that Defendant became indebted to Plaintiff within the last four years because an account was stated in writing by and between Plaintiff and Defendant in which it was agreed that Defendant was indebted to Plaintiff. (FAC, ¶ CC-1a.) Plaintiff also alleges that within

the last two years, Defendant became indebted to Plaintiff for goods, wares, and merchandise sold and delivered to Defendant and for which Defendant promised to pay Plaintiff the sum of \$103,526.00. (FAC, ¶ CC-1b.)

Defendant now demurs to the FAC and filed the instant demurrer on July 20, 2026.

On July 31, 2026, Plaintiff filed its opposition.

On August 5, 2026, Defendant filed its reply.

Legal Standard

A party may object to a complaint or cross-complaint; the party may file a demurrer, an answer, or both. (Code Civ. Proc., § 430.30.) The demurrer may be filed within 30 days after service of the complaint or cross-complaint unless extended by stipulation or court order. (Code Civ. Proc., § 430.40, subd. (a).)

As a general matter, in a demurrer proceeding, the defects must be apparent on the face of the pleading or via proper judicial notice. (*Donabedian v. Mercury Ins. Co.* (2004) 116 Cal.App.4th 968, 994.) “A demurrer tests the pleading alone, and not the evidence or facts alleged.” (*E-Fab, Inc. v. Accountants, Inc. Servs.* (2007) 153 Cal.App.4th 1308, 1315.) As such, the court assumes the truth of the complaint’s properly pleaded or implied factual allegations. (*Ibid.*) The only issue a demurrer is concerned with is whether the complaint, as it stands, states a cause of action. (*Hahn v. Mirda* (2007) 147 Cal.App.4th 740, 747.)

Before filing a demurrer, the demurring party is required to meet and confer with the party who filed the pleading demurred to for the purposes of determining whether an agreement can be reached through a filing of an amended pleading that would resolve the objections to be raised in the demurrer. (Code Civ. Proc., § 430.41.)

Analysis

Meet and Confer

Defendant’s counsel states that on May 26, 2026, she responded

to an email sent by Plaintiff's counsel about an application for right to attach order and for issuance of writ of attachment and raised the unresolved issues that remain in the FAC and she asked to meet and confer prior to filing the demurrer. (Declaration of Marilyn Smith ("Smith Decl."), ¶ 6.) On June 3, 2026 and July 1, 2026, Defendant's counsel sent follow up emails, but Plaintiff's counsel did not respond to Defendant's counsel's email. (Smith Decl., ¶ 7; Exh. B.) The Court finds that Defendant made a good faith effort to meet and confer with Plaintiff, and thus the Court will consider the demurrer on its merits.

Code of Civil Procedure Section 430.60 Requirements

Plaintiff argues that the demurrer is procedurally defective because it fails to separately state each statutory ground as required by Code of Civil Procedure section 430.60. "A demurrer shall distinctly specify the grounds upon which any of the objections to the complaint, cross-complaint, or answer are taken. Unless it does so, it may be disregarded." (Code Civ. Proc., § 430.60.) Here, Defendant failed to separately specify the grounds upon which its objections to the complaint are taken. Despite this procedural deficiency, the Court will consider the demurrer on its merits.

Uncertainty

Defendant demurs to the common counts cause of action on the ground that it is uncertain, ambiguous, and unintelligible. A defendant may object by demurrer to the pleading on the grounds that a pleading is uncertain, that is, the pleading is ambiguous and unintelligible. (Code Civ. Proc., § 430.10, subd. (f).) "[D]emurrers for uncertainty are disfavored, and are granted only if the pleading is so incomprehensible that a defendant cannot reasonably respond." (A.J. Fistes Corp. v. GDL Best Contractors, Inc. (2019) 38 Cal.App.5th 677, 695, as modified (Aug. 13, 2019), internal citations and quotation marks omitted.) "A demurrer for uncertainty is strictly construed, even where a complaint is in some respects uncertain, because ambiguities can be clarified under modern discovery procedures." (Khoury v. Maly's of California, Inc. (1993) 14 Cal.App.4th 612, 616.) Here, the Court finds that the FAC is not uncertain because the FAC is not unintelligible or ambiguous. It is clear that Plaintiff is alleging that Defendant owes it \$103,526.00 for goods, wares, and merchandise sold and delivered to Defendant. Any ambiguity as to whether the alleged indebtedness arises from goods, services, or both can

be clarified through discovery. Thus, the Court overrules the demurrer on the ground of uncertainty.

Common Counts

Defendant demurs to the common counts cause of action on the ground that Plaintiff fails to state facts sufficient to constitute a cause of action. Defendant argues that Plaintiff fails to allege facts identifying (1) the writing allegedly constituting the account stated, (2) when the account was allegedly stated, (3) who assented to the amount, or (4) facts demonstrating Defendant's agreement to the alleged amount. However, "[t]he essential allegations of a common count are (1) the statement of indebtedness in a certain sum, (2) the consideration, i.e., goods sold, work done, etc., and (3) nonpayment." (Allen v. Powell (1967) 248 Cal.App.2d 502, 510.) Plaintiff has made these essential allegations: within the last two years, Defendant became indebted to Plaintiff for goods, wares, and merchandise sold and delivered to Defendant and for which Defendant promised to pay Plaintiff the sum of \$103,526.00. (FAC, ¶ CC-1b.)

Defendant argues that Plaintiff pleads both an account stated in writing and goods sold and delivered, but the invoices attached to the FAC predominantly describe labor, travel, lodging, overtime, and removal work. (FAC, ¶¶ CC-1a, CC-1b.) Defendant also argues that the FAC contains no factual allegations explaining how these transactions satisfy the pleaded common-count causes of action or identifying which documents allegedly constitute the written account stated. The Court finds that because some of the invoices correspond to an account stated does not mean that the invoices contradict the allegations in the FAC.

Defendant argues that the dates on the invoices of the FAC exhibits contradict paragraph CC-2 which alleges the interest began to accrue from December 11, 2024, and that it is only two estimates that date back to December 11, 2024. However, the fact that Plaintiff did not include invoices that date back to December 11, 2024, is not sufficient to show that this contradicts Plaintiff's claim for prejudgment interest starting on December 11, 2024. (FAC, ¶ CC-2.)

The Court acknowledges that on August 5, 2026, the Court found that "Plaintiff has not sufficiently demonstrated the probable validity of its claims for purposes of a writ of attachment." (8/5/26 Minute Order.) Denying Plaintiff's writ and overruling

Defendant's demurrer are not inconsistent rulings. CCP § 484.090 provides that a court's determination of a writ of attachment "shall be made upon the basis of the pleadings and other papers" which may include "additional evidence, oral or documentary ..."

When ruling on Plaintiff's application for a writ, the Court considered the evidence submitted by the parties, including declarations and text messages. When ruling on Defendant's demurrer, the Court only considers the face of the pleading and matters judicially noticed, and it assumes the truth of the complaint's properly pleaded factual allegations. As explained above, the FAC sufficiently states a cause of action for common counts.

Accordingly, the Court overrules the demurrer to the common count cause of action based on the ground that Plaintiff fails to state facts sufficient to constitute a cause of action.

Conclusion

The demurrer to the first amended complaint is
OVERRULED.